

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

HAPAG-LLOYD, A.G. AND HAPAG-LLOYD (AMERICA) LLC –
POSSIBLE VIOLATIONS OF 46 U.S.C. § 41102(C)

DOCKET NO. 21-09

Served: March 14, 2022

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER TO CORRECT FILINGS

On March 11, 2022, the Bureau of Enforcement (“BOE”) filed its opening brief, appendix, and a motion to extend the deadline for submission of exhibit M of the appendix. As explained below, corrected versions of the public opening brief, a table of contents for the appendix, and exhibit M should be filed by March 16, 2022. A joint motion for confidential treatment should be filed by March 31, 2022.

BOE’s motion indicates that BOE is having trouble converting exhibit M from its native format, a Microsoft outlook message, but that Respondents have the exhibit. The exhibit must be converted to a format that can be included in the record. Therefore, a brief extension will be permitted to allow exhibit M to be filed by March 16, 2022. Respondents have not had time to respond to the motion and if they object to consideration of exhibit M, they may so argue in their opposition brief.

The scheduling order states that the “appendix must begin with a table of contents identifying the page at which each individual document begins.” Scheduling Order at 3. BOE shall submit a table of contents for the appendix. In addition to indicating the page at which each individual document begins, BOE should note if confidential treatment is sought for any of the exhibits. BOE may not change the bates numbering on any of the documents in the appendix. If possible, BOE should submit a corrected appendix with the table of contents, exhibit M (which may be placed out of order to maintain the bates numbering), and the PDF should be bookmarked so that each exhibit can be easily found.

BOE properly submitted both public and confidential versions of the filings. BOE’s confidential version of the opening brief is accepted. Regarding marking confidential information, the initial order stated:

Marking confidential material – In the confidential version, confidential information must be conspicuously and clearly marked on each page, for example by highlighting or braces. The public version must indicate on the cover page and on each affected page “Public version – confidential materials excluded.” The public version must clearly

indicate any omissions, for example with blackout or braces, and *its pagination and depiction of text on each page must be identical to that of the confidential version*. For example, the confidential filing may read: “On January 1, 2010, Complainant entered into a {25} year lease with respondent for a monthly rent of {\$1000}.” The public version would read: “On January 1, 2010, Complainant entered into a { } year lease with Respondent for a monthly rent of { }.”

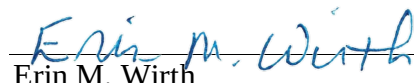
Initial Order at 5 (emphasis added). The confidential information cannot just be omitted, it must be marked, so it is clear how many characters are redacted and so that the public version is paginated identically to that of the confidential version. These corrections are necessary to ensure the public’s ability to understand the decision issued, the amount of information withheld, and so that citations to the confidential version match citations to the public version. BOE should submit a corrected public version of the opening brief that is properly marked and has identical pagination to the confidential version.

The parties are required to file a motion for confidential treatment for information used in a filing.

Use in the proceeding – If confidential information is filed in a memorandum or as an exhibit to a dispositive motion or as part of briefing on the merits, it must be accompanied by a motion justifying confidential treatment. This motion must identify each item for which protection is sought and show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information. 46 C.F.R. § 502.141(j)(1). The burden is on the party seeking to protect the information to show good cause for its protection.

Initial Order at 5 (emphasis added). Given the expedited nature of this proceeding, the parties may file a joint motion for confidential treatment, by March 31, 2022, with requests for confidential treatment in all of the briefs and appendices.

For the reasons above, it is hereby **ORDERED** that BOE file a corrected public version of its opening brief, a table of contents for the appendix, and exhibit M by March 16, 2022. It is further **ORDERED** that the parties file a motion for confidential treatment by March 31, 2022.


Erin M. Wirth
Chief Administrative Law Judge